

IN THE HIGH COURT OF THE UNITED REPUBLIC OF TANZANIA

TEMEKE SUB-REGISTRY

(ONE STOP JUDICIAL CENTRE)

AT TEMEKE

MISC. CIVIL APPLICATION NO. 000018813 OF 2024

*{Arising from the Judgment of the District Court of Temeke at One Stop Judicial Centre in
Matrimonial Cause no. 66 of 2009 by Hon. A.H MBADJO, SRM)}*

CHARLES MBWANA.....APPLICANT

VERSUS

MARIAM JOHN MHINA.....1ST RESPONDENT

G4317 CPL CHARLES.....2ND RESPONDENT

RULING

Date of last order: 12/08/2024 & 13/12/2024

Date of Ruling: 31/12/2024

S.D MWAIPOPO, J.:

The applicant filed the present application under section 14(1) of the Law of Limitation Act, Cap 89 RE 2019, seeking an extension of time to file an appeal against the Ruling and Orders of the District Court of Temeke at One Stop Judicial Centre in Matrimonial Cause No. 66 of 2009. The application was made by way of Chamber summons supported by the affidavit sworn by Shaibu Ramadhani Changeluma, an advocate working at the Law Firm that has been representing the applicant. The respondent filed a counter affidavit to oppose the application.

According to the affidavit sworn in support of this application, the applicant advanced several reasons for the delay in filing the intended appeal within the time stipulated by the law. The reason for the delay was the absence of the reference number of the intended decision to be challenged in the e-case management system.

At the hearing of the present application, the applicant enjoyed the services of Shaibu Ramadhani Chungaluma, learned counsel, while the 1st respondent was represented by Fredrick Mwankinga, learned counsel and 2nd respondent did not appear in court despite being served by way of publication. Thus, the matter proceeded ex parte against him.

The hearing of the Application proceeded by way of written submissions pursuant to the timetable drawn by the court.

Submitting in support of the application, Mr. Chungaluma started by adopting the affidavit in support of the Application to form part of the submissions. The Applicant stated that, after being aggrieved by the judgment of the trial court, which was delivered on 26th October, 2023, he decided to appeal to this court and that on November 7th, 2023, he approached an advocate Shaibu Ramadhani Chungaluma to file an appeal. However, the same was unsuccessful due to the absence of a reference number, following the

introduction of the e-case management system (eCMS) and its reference number requirement for filing an appeal, which began operating on November 6th, 2023.

He added that their efforts to obtain a reference number from the online system were futile. As a result, on November 8th, 2023, he sought help by writing a letter to the Resident Magistrate in charge of the Temeke District Court, requesting the reference number. After several follow-ups, he received the reference number on August 1st, 2024, whereby the deadline to file the appeal had already passed.

The learned counsel further argued that the delay was due to a technical delay, not negligence, inaction, or reluctance on the part of the Applicant. He cite the case of ***CONSOLATA MWAKISU VS THE DIRECTOR OF NSSF, MISC. CIVIL APPLICATION NO. 196 O 2021, HIGH COURT OF TANZANIA AT DAR ES SALAAM***, unreported, whereby KISANYA, J stated that,

“being guided with above authority, it is clear that the delay up to 1st April, 2021 was caused by technical delay. Nothing suggests that the applicant was not prosecuting the said appeal in good faith. It is therefore, an excusable delay.

Additionally, he stated that the decision to be appealed against is tainted with illegalities, including failure to include the house and 2.5 acres farm located at Mlandizi among the matrimonial properties as they were acquired during the marriage, the court has distributed the matrimonial assets equally to the applicant and the 1st respondent without considering that the applicant contributed much than the 1st respondent, it has failed to consider the DNA report as evidence of adultery and that the applicant is not the biological father of Blessing Charles Mbwana and did not order DNA test against the 2nd Respondent to determine the paternity of the child (Blessing).

Opposing the application, the respondent counsels Mr. Mwakinga submitted that the reasons advanced by the applicant for failure to file an intended appeal within time are not sufficient reasons to grant an extension of time due to the reason that the applicant has not accounted for 275 days of delay to file an appeal.

Mr. Mwakinga argued that the applicant's affidavit and submissions detail the period between the delivery of the judgment on 26th October 2023 and the consultation done with his advocate on 7th November 2023. He pointed out that the applicant failed to account for the 12-day period between 26th October and 7th November 2023, as required.

He further explained that paragraphs 4, 5, and 6 of the applicant's affidavit describe the difficulties faced in obtaining the reference number needed to file the appeal. This issue was resolved by the applicant writing a letter to the Resident Magistrate in charge of Temeke District Court, which enabled him to obtain the reference number on 1st August 2024.

Mr. Mwakinga noted that, according to the applicant's affidavit, he spent two days (from 7th November 2023 to 8th November 2023) consulting with his advocate and tracing the reference number.

In his argument, Mr. Mwakinga stated that the applicant has neither shown nor accounted for delay in the affidavit. He pointed out that it is unclear what the applicant was doing between the date he wrote the letter requesting the reference number on 8th November 2023 and the date the reference number was obtained on 1st August 2024, a period of 275 days. Mr. Mwakinga questioned whether the applicant followed up on the matter, how many times he did so, and by what means, whether through physical visits to the court or by writing reminder letters, and he highlighted the lack of supporting evidence for these actions.

In his submission, Mr. Mwakinga referred to the case law on extension of time, citing several Court of Appeal decisions, including *Wambele Mtumwa*

Shahame vs. Mohamed Hamisi, Civil Reference No. 08 of 2016 (unreported), which established that the applicant must account for every day of delay within the prescribed period. He also quoted from *Bushiri Hassan vs. Latifa Mashayo*, Civil Application No. 3 of 2007 (unreported), where the Court of Appeal emphasized that "delay even of a single day has to be accounted for, otherwise, there would be no point in having rules prescribing periods within which certain steps must be taken."

Mr. Mwakinga pointed out that this Court is bound by the principle set out by the Court of Appeal, which requires the applicant to account for any delay, even if it's just one day. He concluded that, in this case, the applicant has failed to account for the entire 275 days of delay.

Mr. Mwakinga added that in paragraph three of the applicant's affidavit, it is stated that the applicant, after being aggrieved by the decision of Temeke District Court (Hon. MBADJO, A.H.), immediately began the process of appealing against the decision. However, it is noted that the applicant did not demonstrate any clear actions to show that he was genuinely aggrieved by the trial court's decision.

He pointed out that one crucial step that was not taken was the filing of a notice of appeal, such as writing a letter to the trial court requesting a copy of

the judgment and proceedings. He further emphasized that the applicant failed to substantiate any claims that his efforts to appeal were blocked by the trial court's failure to provide necessary documents. As a result, his inaction and negligence are seen as the main causes of the delay. The respondent was unaware that the applicant was still considering an appeal after such a long period of time without any apparent intention to appeal.

He cited the case of *Juma Hussein vs. Republic, Criminal Appeal No. 642 of 2020 (TANZANIA)*, where the Court of Appeal stated that the appeal was not properly before the court because the notice of appeal, which institutes the appeal, was not filed. The appeal was therefore struck out for being incompetent.

Mr. Mwakinga stated that the action of obtaining the reference number, could have been done in less than two weeks if the applicant had been serious, however the process was delayed for 275 days, from November 8, 2023, to August 1, 2024. He pointed out that the applicant did not provide any explanation, either in the affidavit or submissions, regarding the technicalities that caused this delay. Mr. Mwakinga emphasized that the delay was a result of the applicant's carelessness. He also noted that while the applicant's counsel referred to the case of *Consolatha Mwakisui vs. The Director of NSSF*

case, where documents were delayed, this was not relevant to the current situation. In the present case, the applicant had not even requested the necessary documents from the trial court and insisted that the applicant failed to prove that there is sufficient cause for the delay and hence urged this court to dismiss the application with costs.

Having heard the viral submission by the parties, the issue for determination is whether the applicant has adduced sufficient reasons to warrant this court to grant an extension of time to file his intended appeal.

To begin my deliberation on this point, I would like to emphasize that extension of time is within the discretion of the Court to grant it upon the applicant advancing sufficient reasons for his/ her failure to file his appeal, within the time prescribed by the law. However, in exercising this discretion on whether to grant an extension of time or not, courts are required to, exercise the said discretion judicially and not arbitrarily, as rightly pointed out by the Court of Appeal of Tanzania at Dar es Salaam in the case of ***Omary Shabani Nyambu vs Dodoma Water and Sewerage Authority***, Civil Application no 146 of 2016.

There is no hard and fast rule to determine what amounts to sufficient cause for purposes of granting an extension of time. However, through case laws it

can be determined depending on the circumstances of each particular case, as the Court of Appeal stated in the case of ***Osward Masatu Mwizarubi vs. Tanzania Fish Processing Ltd, Civil Application No. 13 of 2010*** as follows;

"What constitutes good cause cannot be laid down by any hard and fast rule. The term good cause is relative one and is dependent upon the party seeking extension of time to provide the relevant material in order to move the Court to exercise its discretion."

In the present application, it is undisputed that the judgment to be appealed against was delivered on 26th October, 2023 and, according to section 80 of The Law of Marriage Act, the applicant, as he was the one aggrieved by the decision, had 45 days from the date of the decision to file his intended appeal. Therefore, he ought to have filed his intended appeal on or before 10th December, 2023.

The applicant advanced two significant reasons in his effort to persuade this court to extend the time to file his appeal, one, that there was a technical delay in filing his appeal due to the absence of the reference number, and two, there is an illegality in the said decision to be appealed against. I will deal with each reason separately.

For the first reason, it was the applicant's contention that he failed to file the appeal within time due to technical delay, that is absence of a reference number. As I have already pointed out earlier, an extension of time can be granted upon the applicant advancing sufficient cause. The Court of Appeal of Tanzania, *in the case Lyamuya Construction Co. Ltd v. Board of Registered Trustees of Young Women's Christian Association of Tanzania (Supra)*, established some primary conditions that have to be met before the Court can hold that there was indeed a sufficient cause for delay. The conditions are;

- (a) The applicant must account for all the periods of delay.
- (b) The delay should not be Inordinate.
- (c) The applicant must show diligence and not apathy, negligence, or sloppiness in the prosecution of the action that he intends to take.
- (d) If the Court feels that there are other sufficient reasons, such as the existence of a point of law of sufficient importance; such as the illegality of the decision sought to be challenged."

From the cited authority, for the application to be granted, among other things, the applicant is required to account for each day of delay. In the present application, the applicant's counsel averred that, in the absence of a reference number, he was unable to appeal to this court. As a result, he wrote

a letter to Temeke Resident Magistrate in charge, and after several follow-ups, he obtained the reference number on August 1, 2024.

Although the applicant wrote a letter to Temeke Resident Magistrate on November 8, 2023, requesting a reference number, he was supplied with the reference number on August 1, 2024, after several follow-ups. Hence there was a total of 210 days between the date the letter was written and the date the reference number was obtained. Despite the applicant's counsel claiming that several follow-ups were made, there is no supporting evidence for what actions were taken during this 210-day delay period, or what means were used to make the said follow ups. Furthermore, there is no evidence to confirm that the reference number was supplied on August 1, 2024 to the Applicant, as alleged by the applicant's counsel. The applicant has thus failed to account for what occurred during these 210 days until his application was filed. Therefore, the Applicant has failed to account for each day of delay as required in the case of **Lyamuya Construction** (supra). See also the case of **Sebastian Ndauda V. Grace Rwamafa (Legal personal representative of Joshua Rwamafa Civil Application no. 4/2014 (unreported))**

In the present application, the applicant alleges that there is illegality in the decision he intends to appeal against, as the Court failed to properly evaluate

the evidence. In my view, the reason advanced by the applicant of failure to properly analyze evidence does not constitute an illegality on the face of it and requires a long-drawn process to be done by the court to establish its truth and, thus, cannot be used as a ground for extension of time. Reference is made to the case of **Principal Secretary Ministry of Defence National Service vs Devram Valambhia (1992) TLR** which supports this position

Therefore, having analyzed the issue of technical delay and an illegality raised by the applicant, I am of the settled view that the Applicant has failed to provide sufficient reasons to warrant this court to exercise its discretionary power to grant an extension of time to file the intended appeal.

In the upshot, this application is hereby dismissed. Costs are to be shared by the parties.

It is ordered.

The right of appeal is fully explained.

Dated at Temeke this 31st day of December, 2024.




S.D MWAIPOPO
JUDGE
31/12/2024